

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: July 1, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

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**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:00 a.m. CALENDAR

CHALLENGER v. BLANKENSHIP, et al.
CU25-09577

Motion by Plaintiff for Sanctions (Against Counsel for Defendant ARTHUR BLANKENSHIP)

TENTATIVE RULING

C.C.P. §128.7(a) requires any motion to be signed by the party or attorney filing it, or corrected with signature promptly after the absence of signature is identified to that party or attorney.

Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not represented by an attorney, shall be signed by the party. Each paper shall state the signer's address and telephone number, if any. Except when otherwise provided by law, pleadings need not be verified or accompanied by affidavit. An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party.

While Plaintiff signed her declaration attached to the motion, no signature appears on the motion itself (although there is a signature line and the end of the motion for a signature).

This omission was identified in the opposition papers filed and served by mail on June 11, but has not been "promptly corrected".

In addition to the failure to sign the motion papers, this motion fails on substantive grounds.

The two statutory bases for sanctions claimed in Plaintiff's motion are C.C.P. §128.5 and C.C.P. §128.7.

C.C.P. §128.7 is specific to the filing of papers, not oral statements made by one party's counsel to the other party.

C.C.P. §128.5(a) authorizes recovery only of "the reasonable expenses, including attorneys fees, incurred by another party" resulting from the frivolous conduct.

Self-represented parties, even if they are licensed California attorneys, are not allowed to recover attorneys fees even when an applicable statute generally authorizes a prevailing party to recover attorneys fees. Honchariw v. PMF CA REIT, LLC (2025) 117

Cal.App.5th 827, 835-839, which while granted review by California Supreme Court still stands as citable persuasive authority pending that review, per 2026 Cal.LEXIS 1392.

The court also notes that Plaintiff earlier obtained a fee waiver order, and thus did not pay a filing fee or incur any other reasonable expense to file this motion.

Finally, unlike the cases cited by Plaintiff's motion, largely from courts other than California state courts, that imposed sanctions and/or reported incidents to the State Bar, involving repeated instances of very offensive words and/or conduct, the court finds that the sole comment at issue in this motion was not sufficiently egregious to warrant issuance of sanctions or reporting to the State Bar.

Thus, for many independent reasons, this motion is denied in its entirety.

Despite the inability of counsel against whom this motion was filed to remember the incident at issue, the court appreciates his willingness to apologize for the subject statement. Litigants, and counsel, are human, and the court does not expect that human emotions such as frustration will not at times be stirred up in litigation. However, it is in the best interest of all to avoid making statements that could be reasonably interpreted to be disrespectful.

9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF THE LITTLE TREE TRUST DATED 9/24/1999
FPR050043**

Trustee's Report, Fourth and Final Account, and Petition for Allowance of Fees and Distribution of Trust [Probate Code §17200; Solano County Superior Court Local Rules 7.100-7.106]

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed. The fourth and final accounting is approved and settled. The trustee is approved to pay \$4,153.75 and \$79.05 in attorney fees and costs incurred in the conservatorship proceeding. The trustee is further approved to pay \$8,087.50 and \$542.66 for attorney fees and costs in this trust matter. The trustee is directed to distribute the trust estate pursuant to the terms of The Little Tree Trust and its amendments.

**IN THE MATTER OF THE WILLIE J. BURNS & JULIE P. BURNS TRUST
FPR051670**

Notice of Motion and Motion to Vacate Order; Memorandum of Points and Authorities;
Declaration of Rhonda Lofton in Support of Motion to Vacate Order Under Code of Civil
Procedure Sections 473(b) and 473(d)

Opposition to Rhonda Lofton's Motion to Vacate Order

Rhonda Lofton's Reply to Trustee's Opposition to Motion to Vacate

Petition to Compel Accounting Prob. Code 10950, Subd. (a) Prob C 16062

Objection to Petition to Compel Accounting and Request for Sanctions

PREGRANT ORDER

Counsel and parties may appear via Zoom, in person, or by CourtCall.

The court notes that the damages petition was filed July 15, 2024 and the moving party, Rhonda Lofton, never filed an opposition despite being given more than ample time to respond. The court further notes that Ms. Lofton was represented by no less than 6 attorneys over the course of this litigation, not including her current counsel. Ms. Lofton failed to file opposition to the petition for damages despite being given months, even years, to do so, and she acted in bad faith throughout the litigation, including refusing to respond fully to discovery. She has been sanctioned more than once for her litigious behavior over the course of this litigation. Ms. Lofton was allowed to attend and participate in the hearing for damages, but declined to do so.

The court denies the motion to vacate the order for damages.

As to the Petition to Compel Accounting:

The court on its own motion continues this hearing to August 27, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing Rhonda Lofton shall resolve the following issues with her petition:

1. The Proof of Service is signed by the moving party which is not correct. The moving party is reminded that documents are to be served by a person who is not a party to the action. (Civ. Proc. §§ 1012; 1013a.)
2. The petition cites to Probate Code sections that govern estates and accountings, but this is a trust matter and is governed by different Probate Code sections. The moving party shall explain.

LINE

4

**IN THE MATTER OF THE ARTHUR CARDOSO LIVING TRUST
PR24-00003**

Status Hearing/Trial Setting

PREGRANT ORDER

This matter was continued from April 9, 2026 and May 14, 2026 for a status review hearing. The court has reviewed the Declaration filed June 23, 2026 which requests a 60 day continuance.

The court on its own motion continues this hearing to September 3, 2026 at 9:30 a.m. in Department 22.

LINE

5

**IN RE THE ESTATE OF EMMANUEL RIVERA, DECEASED
PR24-00180**

DNA Test Results

PREGRANT ORDER

This matter was continued from January 21, 2026 and April 22, 2026 to allow the petitioner to obtain a visa and travel to the United States for DNA testing to confirm her parentage by the decedent.

Counsel and parties to appear. Remote appearances are approved. Counsel to report on whether the petitioner has obtained her visa and whether the DNA testing has taken place.

LINE

6

**IN RE THE ESTATE OF JAMES DARREL TURLA RIVERA, DECEASED
PR24-00188**

Other DNA Test Results & Trial Setting

Review/Compliance Hearing re: Inventory & Appraisal

PREGRANT ORDER

This matter was continued from January 21, 2026 and April 22, 2026 to allow the petitioner to obtain a visa and travel to the United States for DNA testing to confirm her parentage by the decedent.

Counsel and parties to appear. Remote appearances are approved. Counsel to report on whether the petitioner has obtained her visa and whether the DNA testing has taken place. Counsel shall also report on the status of filing the Inventory and Appraisal.

LINE

7

**IN RE THE ESTATE OF DENNIS E. CLEMENTE, DECEASED
PR24-00355**

First and Final Report of Administrator on Waivers of Account, and Petition for Final Distribution, For Allowance of Attorney's Fees for Statutory Services

PREGRANT ORDER

This matter was continued from April 30, 2025, July 2, 2025, September 24, 2025, and January 7, 2026 to allow the petitioner to address the litigation filed against the estate and the representative. The court has reviewed the further declaration filed June 22, 2026, which requests that the hearing on the final report be continued to a date after January 2027.

The court on its own motion continues this hearing to January 14, 2027, at 9:30 a.m. in Department 22.

LINE

8

**IN RE THE ESTATE OF RICHARD TONY MARTINEZ, DECEASED
PR24-00360**

Petition For Termination Of Proceedings; and Discharge Of Personal Representative

PREGRANT ORDER

The court finds all notices have been given as required by law. Absent any objections, the petition is granted as prayed. The administration of the estate is terminated and the personal representative is discharged.

All future compliance hearings are vacated.

LINE

9

**IN THE MATTER OF THE RUBY J. FISHER LIVING TRUST DATED
NOVEMBER 25, 2013**

Status Review of Payment and Mortgage Loan Status

PREGRANT ORDER

This matter was continued from May 14, 2026 and the court requested detailed information on the status of the mortgage loan parties are attempting to obtain at the next hearing. Nothing has been filed.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of mortgage loan process.

LINE

10

IN RE THE ESTATE OF RONALD L. BAKER, SR., DECEASED
PR24-00658

Petition for Preliminary Distribution Pursuant to California Prob Code Section 11623

PREGRANT ORDER

The court on its own motion continues this hearing to September 3, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

It is unclear why the petitioner filed a petition for preliminary distribution, instead of a petition for final distribution. The December 2026 court date is for a compliance hearing only and the court will not close the estate on that date without a petition for final distribution.

LINE

11

IN RE THE ESTATE OF DARRELL DEWAYNE SWEARENGIN, DECEASED
PR24-00700

First and Final Report of Administrator on Waiver of Accounting, Petition for its Settlement, for Allowance of Statutory Attorneys Fees, and for Distribution

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

LINE

12

IN RE THE ESTATE OF MARIAN P. CALLAHAN, DECEASED
PR25-00084

Petition for Approval of First Report of Status of Administration and Petition Requesting Additional Time for Estate Administration

PREGRANT ORDER

The status report filed May 13, 2026 is approved. The court orders that the estate's administration shall continue through November 13, 2026. Unless a petition for final

distribution is on file by November 13, 2026, a status report shall be filed by November 13, 2026.

LINE

13

**IN THE MATTER OF THE VICTORIA STEPHANIE GRAY LIVING TRUST
PR26-00140**

Petition for Order Confirming Trust Assets; Memorandum of Points and Authorities;
(Probate Code Section 850(a)(3))

Petition For Order Appointing Successor Trustees

PREGRANT ORDER

This matter was continued from May 18, 2026 and June 22, 2026 to allow the petitioner to address issues with the petition confirming trust assets. The petitioner was instructed to file a declaration to address the remaining issues. No declaration has been filed.

The court on its own motion continues this hearing September 2, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues as it relates to each petition:

As to the Petition for Order Confirming Trust Assets:

The petitioner shall file a declaration stating whether there was a pay on death beneficiary on the account.

As to the Petition For Order Appointing Successor Trustees:

1. The proof of service for the petition did not list the proposed successor trustees. Proper notice must be given to the proposed successor trustees. (Prob. Code §17203.)
2. The petition did not list the addresses for the proposed Successor Trustees, Lauren Gray and Caryn Gray, who would be entitled to notice of the petition as successor trustees. (Prob. Code §17201.)
3. The Petition for Order Appointing Trustees appears to be a request to modify the trust not to fill a vacancy. The petitioner seeks relief per Probate Code §15660 (c), which is used when there is a “vacancy”. In the instant petition before the court, there is no vacancy. The petitioner seeks relief to include the names of the proposed Successor Trustees only if he “resigns or is incapacitated or deceased...”. The petitioner shall explain.